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Our ref: SW/EM/HARTWELL-018

PRIVATE & CONFIDENTIAL — BY EMAIL AND RECORDED DELIVERY

The Directors
Tessaract Bioreagents Limited
Imberton House, Cray Avenue
Orpington BR5 3RP

11 November 2025

Dear Sirs

Letter before action — Supply and Quality Agreement dated 14 February 2024 (HX-218 API) — defective batch TX-HX218-0461

We act for Hartwell Pharma Limited ("our client"). This letter is a letter before claim sent in accordance with the Practice Direction on Pre-Action Conduct and Protocols. We invite you to read it carefully and to take legal advice upon it.

The Agreement

By the Supply and Quality Agreement dated 14 February 2024 (the "Agreement"), your company agreed to manufacture and supply to our client the active pharmaceutical ingredient HX-218 for use in our client's Phase II clinical programme. Under clause 4.1 each batch was to conform to the specification at Schedule 3 (including assay purity of not less than 99.0% and total related substances of not more than 0.5%); under clause 4.2 each batch was to be manufactured in accordance with cGMP and the Quality Agreement; and under clause 9.3 of the Quality Agreement no change to the validated process or to any starting-material supplier could be made without our client's prior written approval through change control.

What has happened

On 5 August 2025 you delivered batch TX-HX218-0461, accompanied by a Certificate of Analysis and a Certificate of Conformity certifying compliance with Schedule 3. In reliance on those certificates our client released the batch into the manufacture of clinical lot DP-2025-114. On 2 September 2025 our client's release testing identified an unknown impurity at 0.9% area, well in excess of the 0.5% limit. The lot had to be quarantined and rejected.

Our client's investigation, since confirmed by independent laboratory testing, established that the impurity is a process-related degradant arising from an unqualified starting material. On 19 September 2025 your Mr Doyle admitted that, for this batch, the 4-chloro intermediate had been sourced from Reyland Fine Chemicals in place of the qualified supplier in the validated process, and that no change-control notification had been made to our client. Had any such notification been made, our client would not have approved the change and would never have released the batch.

Your liability

In the premises your company is in breach of clauses 4.1, 4.2, 4.4 and 9.3 of the Agreement and of the terms implied by sections 13 and 14 of the Sale of Goods Act 1979. The change of supplier without

change control was a deliberate breach, with the consequence that the limitation of liability in clause 14 does not apply by reason of clause 14.4.

Our client’s loss

As a direct result our client has had to write off lot DP-2025-114, procure replacement API, repeat the manufacturing campaign and associated testing, and manage a delay to its clinical programme. Our client’s loss presently exceeds £3.1 million, particulars of which will be provided in a schedule of loss. Interest is also claimed.

What we require

We require your written acknowledgement of this letter within 14 days and your substantive response within 28 days, confirming: (a) whether liability is admitted; (b) if liability is disputed, the basis on which it is disputed, with the documents on which you rely; and (c) your proposals for resolving this matter, including by way of mediation. Our client reserves the right to issue proceedings without further notice if a satisfactory response is not received.

Please confirm whether you have instructed solicitors and, if so, provide their details so that future correspondence may be directed to them. Our client’s rights are fully reserved.

Yours faithfully

Whitfield Carter LLP